

SAMPLE AGREEMENT

Recruitment Services Agreement

Sample recruitment deal between Randstad and Google.

Recruitment agency	Randstad [exact legal entity and registered address]
Client	Google [exact contracting legal entity and address]
Service	Permanent hiring / contract staffing / both, as selected
Effective date	[DD Month YYYY]
Initial term	[12 months / other]

DRAFT NOTICE

This is a sample commercial document for discussion. It is not an executed agreement or legal advice. Confirm the exact legal names, addresses, commercial terms, tax treatment, governing law and statutory requirements with qualified counsel before signature.

Prepared: 14 July 2026 | Version 1.0

Recruitment Services Agreement

This Recruitment Services Agreement (the **Agreement**) is entered into on **[date]** between **Randstad [legal entity]** (the **Agency**) and **Google [contracting legal entity]** (the **Client**). The Parties agree as follows:

1. Appointment and scope

- 1.1** The Client appoints the Agency on a **[non-exclusive / exclusive for listed roles]** basis to source, screen and introduce candidates for approved requisitions. Services may include market mapping, outreach, initial screening, interview coordination, offer support and agreed reporting.
- 1.2** No requisition is active until the Client issues written approval identifying the role, location, employment type, required skills, compensation range, interview process, target dates, diversity and accessibility requirements, and authorized hiring contacts.
- 1.3** The Agency has no authority to bind the Client, make employment offers, promise compensation or benefits, or represent that a candidate will be hired unless specifically authorized in writing.

2. Agency responsibilities

- 2.1** The Agency will use trained recruiters, communicate roles accurately, verify candidate interest before submission, maintain reasonable screening notes and submit candidates only through the approved channel.
- 2.2** The Agency will obtain appropriate candidate permission to share application data with the Client, provide required privacy information and avoid collecting irrelevant sensitive information.
- 2.3** The Agency will not discriminate, make misleading statements, charge candidates a fee for Client roles, induce a candidate to breach obligations, or use confidential information from another customer.
- 2.4** The Agency will identify known restrictions, work-authorization needs, notice period, location expectations and compensation expectations, while making clear that all details remain subject to Client verification.

3. Client responsibilities

- 3.1** The Client will provide accurate role information, timely feedback, authorized interviewers, reasonable accessibility accommodations and a fair selection process.
- 3.2** The Client will promptly tell the Agency whether a submitted candidate is already known, already active in process, or submitted by another approved source. The Client will not request candidate information unrelated to the role or permitted hiring purpose.
- 3.3** The Client remains solely responsible for interview decisions, offers, employment terms, background-check decisions and compliance as an employer.

4. Candidate introduction and ownership

- 4.1** A valid introduction occurs when the Agency submits a named candidate with the candidate's permission against an approved requisition through the designated system, and the Client has not documented prior active contact with that candidate during the preceding **[six]** months.
- 4.2** The Client must identify a duplicate candidate within **[five]** business days and provide reasonable evidence. The Parties will resolve conflicting claims using ATS timestamps, candidate confirmation and documented active engagement, not database presence alone.
- 4.3** Candidate ownership lasts **[six/twelve]** months from a valid introduction for the same or substantially related role. No fee is due where the Agency did not have candidate permission or where the Client proves an earlier active relationship.

5. Fees, invoicing and taxes

- 5.1 For permanent hiring, the placement fee is **[percentage]** of the candidate's first-year base salary or total fixed cash compensation, as defined in Schedule 2. Variable compensation, equity, benefits and sign-on payments are excluded unless expressly included.
- 5.2 A placement fee becomes payable only when the candidate accepts the Client's offer and starts employment, unless Schedule 2 states an approved retained-search milestone model.
- 5.3 Invoices are payable within **[30/45]** days and must identify the requisition, candidate, start date, fee basis and taxes. The Client may dispute an invoice in good faith within **[15]** days; undisputed amounts remain payable.
- 5.4 For contract staffing, rates, payrolling responsibility, statutory benefits, timesheets, overtime, expenses and conversion fees must be stated in a separate signed schedule before any worker starts.

6. Replacement or refund guarantee

- 6.1 If a permanent hire resigns or is terminated for documented performance or conduct reasons within **[90]** days, the Agency will conduct one replacement search without an additional placement fee, provided the Client paid the original invoice on time and did not materially change the role.
- 6.2 The guarantee does not apply to redundancy, restructuring, location change, material compensation or role change, discrimination, unsafe conditions, Client breach, or delayed onboarding caused by the Client.
- 6.3 If the Parties select a refund instead of replacement, the refund scale and claim deadline must be stated in Schedule 2. The Client must notify the Agency within **[ten]** business days after the employment ends.

7. Candidate data and confidentiality

- 7.1 Each Party is responsible for its own lawful processing of candidate data and will provide required privacy notices. Candidate data will be used only for recruitment, hiring administration, legal compliance and other purposes separately authorized by the candidate and applicable law.
- 7.2 The Parties will apply least-privilege access, secure transmission, retention limits, deletion processes and incident response. Neither Party may add candidate data to unrelated talent pools or use it for model training without a lawful basis, transparent notice and any required permission.
- 7.3 Each Party will protect the other's non-public requisition, compensation, organization, candidate, security, strategy and commercial information and disclose it only to personnel and advisers who need it and owe equivalent duties.

8. Equal opportunity, screening and compliance

- 8.1 The Agency will source and screen against documented, job-related criteria. Both Parties will comply with applicable employment, anti-discrimination, accessibility, immigration, privacy, anti-bribery, modern-slavery and sanctions requirements for their activities.
- 8.2 Background, reference, education, identity or work-authorization checks will be performed only when stated in a signed requisition or schedule, with required notices and permissions. The Client makes the final assessment and provides any legally required adverse-action process.
- 8.3 The Agency will maintain records sufficient to support agreed service reporting and compliance audits. Audit access will be reasonable, limited in scope and protect candidate rights and other customers' confidential information.

9. Service standards and reporting

- 9.1** The Agency will report the agreed operational measures, which may include time to first shortlist, submission-to-interview rate, offer acceptance, start rate, source mix, candidate experience and ageing requisitions.
- 9.2** Targets are service objectives unless Schedule 1 expressly makes them service levels with remedies. Neither Party will use diversity data to make unlawful individual decisions; aggregated reporting will protect confidentiality.

10. Intellectual property and publicity

- 10.1** Each Party retains its pre-existing methods, systems, templates and materials. The Client owns its job descriptions and employer content. Candidate-authored material remains subject to candidate rights.
- 10.2** The Agency may not use the Client's name, logo, job branding, employee quotes or hiring statistics publicly without written approval. Approved use must follow current brand guidelines and stop when approval is withdrawn.

11. Warranties, indemnities and liability

- 11.1** Each Party warrants it has authority to enter the Agreement. The Agency warrants professional delivery but does not guarantee candidate performance or continued employment. The Client warrants that approved roles, criteria and instructions are lawful.
- 11.2** Indemnities for confidentiality breach, data violations, intellectual-property claims, employment obligations for agency workers and unlawful instructions must be completed by counsel, including defense and settlement procedures.
- 11.3** Except for exclusions agreed by counsel, neither Party is liable for indirect or consequential loss. The general aggregate liability cap is **[fees paid or payable in the preceding 12 months / negotiated amount]**, with any separate caps stated in Schedule 2.

12. Term, termination and transition

- 12.1** The Agreement begins on the Effective Date and continues for **[12]** months, then renews for successive **[12]**-month periods unless either Party gives **[60]** days' notice.
- 12.2** Either Party may terminate for material breach not cured within **[30]** days, insolvency, unlawful conduct or a serious unresolved security risk. The Client may close or pause individual requisitions without terminating the Agreement.
- 12.3** Termination does not remove fees validly earned for candidates introduced before termination during the agreed ownership period. The Agency will return or delete Client and candidate data as required and provide an orderly handover.

13. General

- 13.1** Neither Party may assign the Agreement without consent, except to an affiliate or successor that accepts the obligations. Subcontracting does not release the Agency from responsibility.
- 13.2** This Agreement and signed schedules form the entire agreement. Changes must be signed by authorized representatives. If a term is unenforceable, the remaining terms continue.
- 13.3** Notices, governing law, courts and dispute escalation are **[to be completed by counsel]**.

Signatures

Randstad [legal entity]	Google [contracting legal entity]
Authorized signatory: _____	Authorized signatory: _____
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____

Schedule 1 - Recruitment Service Plan

Service area	Agreed detail
Business units / countries	[Insert]
Role families and levels	[Engineering, sales, operations, other]
Engagement model	[Contingent / retained / RPO / contract staffing]
Exclusivity	[None / named requisitions and duration]
Submission channel	[ATS / vendor portal / named contact]
Required candidate information	[CV, consent, availability, expectations, work authorization]
Interview and feedback process	[Stages, owners and response targets]
Background checks	[Scope, provider and responsibility]
Accessibility and candidate support	[Contact and accommodation workflow]
Reporting cadence	[Weekly / monthly and required metrics]

Schedule 2 - Commercial Terms

Item	Agreed term
Permanent placement fee	[Percentage and precise compensation basis]
Retained-search milestones	[If applicable]
Candidate ownership period	[Months]
Duplicate notice period	[Business days]
Replacement guarantee	[Days, conditions and process]
Refund scale	[If selected]
Contract worker markup / rate card	[Attach approved rate card]
Conversion fee	[Formula and waiver period]
Invoice and payment term	[Insert]
Taxes and approved expenses	[Insert]
Liability cap and exclusions	[Insert after legal review]

Schedule 3 - Requisition Form

Field	Required information
Requisition ID / hiring manager	
Role title, level and location	
Employment type and target start date	
Job-related must-have criteria	
Compensation range and approved flexibility	
Interview stages and decision owners	
Work authorization / relocation parameters	
Accessibility contact	
Authorized by / date	